



CHAPTER 1v.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the Urban District of Athy and the Rural District of Naas (No. 1). A.D. 1903.
 [30th June 1903.]

WHEREAS the Local Government Board for Ireland have made the Provisional Orders set forth in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1896 :

41 & 42 Vict. c. 52.
 42 & 43 Vict. c. 57.
 47 & 48 Vict. c. 77.
 52 & 53 Vict. c. 64.
 53 & 54 Vict. c. 59.
 59 & 60 Vict. c. 54.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to one of those Orders :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The Urban District Council of Athy shall not under the powers of the Athy Order 1903 hereby confirmed purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board for Ireland ten or more houses which were not so occupied on the said fifteenth day of December but have been or will be subsequently so occupied. Restriction of power to take houses of labouring class.

The expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or

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A.D. 1903. handicraft without employing others except members of their own
— families and persons other than domestic servants whose income
does not exceed an average of thirty shillings a week and the
families of any of such persons who may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board
(Ireland) Provisional Orders Confirmation (No. 6) Act 1903.

SCHEDULE.

A.D. 1903.

URBAN DISTRICT OF ATHY.

*Provisional Order to enable the Council of the Urban District
of Athy to put in force the Compulsory Clauses of the Lands
Clauses Acts.* *Athy.*

WHEREAS the urban district council of Athy (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing an additional supply of water for their district :

Now therefore we the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of any other power enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them. 41 & 42 Vict.
c. 52. 59 & 60 Vict.
c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of the rate leviable under section 60 of the Towns Improvement (Ireland) Act 1854 as amended by any enactment. 17 & 18 Vict.
c. 103.

4. This Order may be cited as the Athy Order 1903.

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Provisional Orders Confirmation (No. 6) Act, 1903.

A.D. 1903.

Athy.

SCHEDULE.

QUEEN'S COUNTY.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Parish of RATHASPICK.			
1	Part of the townland of Wolfhill land and water site of Intake Well and right of way thereto spring or underground stream to be intercepted and appropriated containing 5½p.	Frances L. White and Louisa F. Bowen.	John Geoghegan.
Parish of KILLABBAN.			
2	Part of the townland of Ballylehane Lower land and water site of Intake Well and right of way thereto spring or underground stream to be intercepted and appropriated containing 5½p.	Willoughby H. Carter -	William McGrath.
3	Part of the townland of Ballylehane Lower site for service reservoir containing 2r.	Ditto - -	John Hayden.

Given under our seal of office this Thirtieth day of April One thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

RURAL DISTRICT OF NAAS (No. 1).

Naas (No. 1). Provisional Order to enable the Council of the Rural District of Naas (No. 1) to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the council of the rural district of Naas (No. 1) (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the schedule hereto for the purpose of providing a supply of water for the district electoral division of Newbridge Urban (including the town of Newbridge) in their district:

Now therefore we the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the

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purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Naas (No. 1).
59 & 60 Vict.
c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Kildare in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.

61 & 62 Vict.
c. 37.

4. This Order may be cited as the Newbridge Waterworks Order 1903.

S C H E D U L E.

Parish of GREAT CONNELL in the County of KILDARE.

Nos. on deposited Plans.	Description of Lands.	Owner or reputed Owner.	Lessees or reputed Lessees.	Occupiers.
1	Part of the townland of Great Connell as follows :— Land containing 1a. 1r. 26p.	Maria E. Powell	William McDonagh	William McDonagh.
2	Land and water containing 1p.	Ditto	Lady Olivia Higginson.	Lady Olivia Higginson.
3	Land and water containing 1p.	Ditto	Ditto	Ditto.
4	Land containing 1r. 16p.	Ditto	Thomas Morrin	Thomas Morrin.
5	Land containing 1r. 27p.	Ditto	Mathew Redmond	Mathew Redmond.
6	Land containing 1r. 32p.	Ditto	John Waters	Joseph O'Connor Arthur O'Connor William Twyford.

Given under our seal of office this First day of May One thousand nine hundred and three.

(L.S.)

H. A. ROBINSON.

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